

1 ENGROSSED HOUSE
2 BILL NO. 4132

By: Steagall and Fetgatter of
the House

3 and

4 Alvord of the Senate
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8 An Act relating to technology; providing liability
9 protections for counties and municipalities that
10 adopt recognized cybersecurity frameworks; providing
11 requirements for safe harbor qualification;
12 permitting counties and municipalities to submit
13 summary information to State Auditor and Inspector;
14 providing for codification; and providing an
15 effective date.

16 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

17 SECTION 1. NEW LAW A new section of law to be codified
18 in the Oklahoma Statutes as Section 1000 of Title 75A, unless there
19 is created a duplication in numbering, reads as follows:

20 A. No county or municipality shall be held liable in a civil
21 lawsuit for damages resulting from a data breach or cybersecurity
22 incident if, at the time of the breach or incident, the county or
23 municipality had adopted and reasonably conformed its practices to
24 one or more of the following frameworks:

1 1. The National Institute of Standards and Technology (NIST)
2 Cybersecurity Framework;
3 2. The Center for Internet Security (CIS) Critical Security
4 Controls; or
5 3. The ISO/IEC 27000 series of information security standards.

6 B. To qualify for safe harbor under this section, a county or
7 municipality shall:

8 1. Complete and submit an annual self-certification by the
9 county or municipality information technology officer or designee to
10 the governing body of the county or municipality affirming
11 conformity to the selected framework;

12 2. Maintain documentation and records demonstrating
13 implementation of cybersecurity practices, including, but not
14 limited to, policies, asset inventories, multifactor authentication,
15 patching, backups, employee training, incident response, business
16 continuity, and disaster recovery plans; and

17 3. Obtain an independent review by a qualified external
18 assessor not less than once every three (3) years, with the
19 resulting report to be retained by the county or municipality and
20 deemed confidential pursuant to the Oklahoma Open Records Act.

21 C. A county or municipality may voluntarily submit summary
22 information regarding its self-certification or independent review
23 to the State Auditor and Inspector for the purpose of statewide
24 benchmarking and education.

SECTION 2. This act shall become effective November 1, 2026.

Passed the House of Representatives the 17th day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the _____ day of _____, 2026.

Presiding Officer of the Senate